

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

DECISION

Application no. 45733/13
Sergey Nikolayevich ALEKSANDROV against Russia
and 4 other applications
(see appended table)

The European Court of Human Rights (Third Section), sitting on 20 October 2022 as a Committee composed of:

Darian Pavli*, President,*
Andreas Zünd*,*
Frédéric Krenc*, judges,*
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having regard to the above applications lodged on the various dates indicated in the appended table,

Having regard to the observations submitted by the respondent Government,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

The list of applicants is set out in the appended table.

The applicants' complaints under Articles 11 and 14 of the Convention concerning the discriminatory ban on holding LGBT public assemblies were communicated to the Russian Government ("the Government"). In some of the applications, complaints based on the same facts were also communicated under Article 13 of the Convention (see the appended table).

THE LAW

A. Joinder of the applications

Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single decision.

B. Complaints under Article 11 and Article 14 in conjunction with Article 11 of the Convention (discriminatory ban on holding LGBT public assemblies), and Article 13 of the Convention (lack of effective domestic remedies)

In the present applications, the applicants complained about the administrative refusals to approve the locations of LGBT public assemblies and the absence of an effective domestic remedy in this respect. They referred to Articles 11, 13 and 14 of the Convention, which, in so far as relevant, read as follows:

Article 11

"1. Everyone has the right to freedom of peaceful assembly ...

2. No restrictions shall be placed on the exercise of these rights other than such as are prescribed by law and are necessary in a democratic society in the interests of national security or public safety, for the prevention of disorder or crime, for the protection of health or morals or for the protection of the rights and freedoms of others ..."

Article 13

"Everyone whose rights and freedoms as set forth in [the] Convention are violated shall have an effective remedy before a national authority notwithstanding that the violation has been committed by persons acting in an official capacity."

Article 14

"The enjoyment of the rights and freedoms set forth in [the] Convention shall be secured without discrimination on any ground such as sex, race, colour, language, religion, political or other opinion, national or social origin, association with a national minority, property, birth or other status."

The Court observes that in applications nos. 45733/13 and 24954/14 the applicants challenged the decisions of local authorities disapproving the locations of their public events in the domestic courts under the Code of Civil Procedure. In both cases they brought these proceedings after the planned dates of their public events. The Court has already found in *Alekseyev v. Russia* (nos. 4916/07 and 2 others, §§ 99 and 100, 21 October 2010) that the judicial remedy of a post-hoc character the applicants had recourse to was incapable of providing adequate redress in respect of the alleged violation of Article 11 of the Convention. The applicants therefore should have been aware of the ineffectiveness of the judicial review as a remedy in respect of their complaints so as to reasonably anticipate the application of the six-month requirement in their case (see, for similar approach, *Alekseyev and Others v. Russia*, nos. 14988/09 and 50 others, §§ 14-16, 27 November 2018). Accordingly, they should have lodged their complaints within six months of the date of the local administrations' decisions banning their public events

(see *Komarova v. Russia* (dec.) [Committee], no. 44570/11, § 18, 26 May 2020).

Furthermore, in applications nos. 36107/19, 32151/20 and 32191/20 the applicants had recourse to judicial review under the Code of Administrative Procedure which entered into force on 15 September 2015. In *Kablis v. Russia* (nos. 48310/16 and 59663/17, §§ 68-69, 30 April 2019) the Court also examined this venue and found that it was limited to examining the lawfulness of the authorities' decisions and did not include any assessment of their "necessity" and "proportionality". The Court concluded that the domestic law as in force between 15 September 2015 and 26 June 2018 did not provide for an effective remedy in respect of the complaints about restrictions on the right to peaceful assembly (ibid., § 71). The applicants, all of whom planned holding public events before 26 June 2018, should have been aware of the absence of any effective remedy in respect of their complaints after the adoption of the judgment in *Alekseyev* (cited above). Accordingly, they should have lodged their complaints with the Court within six months of the local authorities' decisions banning their public events.

It follows that the applications are inadmissible for non-compliance with the six-month rule and must be rejected in accordance with Article 35 §§ 1 and 4 of the Convention.

For these reasons, the Court, unanimously,

Decides to join the applications;

Declares the applications inadmissible.

Done in English and notified in writing on 10 November 2022.

Viktoriya Maradudina	Darian Pavli
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Articles 11 and 14 of the Convention (discriminatory ban on holding LGBT public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Proposed theme of the public event Location Date	Grounds for refusal	Final domestic decision Court name Date	Other complaints under well-established case-law
1.	45733/13 11/07/2013	**Sergey Nikolayevich ALEKSANDROV** 1992	Memorial Human Rights Centre Moscow	Demonstration to draw public attention to the issues of protection of LGBT persons Arkhangelsk 10/09/2012	Content-based restriction with reference to regional law banning promotion of homosexuality Decisions by Arkhangelsk Mayor's Office of 30/08/2012 and 06/09/2012	Judicial review under the Code of Civil Procedure: 14/01/2013 Arkhangelsk Regional Court (appeal decision)	-
2.	24954/14 25/03/2014	**Ruslan Aleksandrovich SAVOLAYNEN** 1989	Kirichenko Kseniya Alekseyevna Geneva	Picketing timed to International Transgender Day of Visibility Moscow Square, Lenin monument St Petersburg 31/03/2013	Content-based restriction with reference to regional law banning promotion of homosexuality Decision by the Moscow District Administration of St Petersburg of 26/03/2013	Judicial review under the Code of Civil Procedure: 18/04/2014 St. Petersburg City Court (first-tier cassation); 25/09/2013 St Petersburg City Court (appeal decision)	-
3.	36107/19 25/06/2019 (4 applicants)	**Aleksey Nikolayevich NAZAROV** 1972 **Aleksey Vladimirovich SERGEYEV** 1975	Mikhaylova Kseniya Andreyevna St Petersburg	"Gays for Putin" pre-election manifestation Bolshaya Moskovskaya Street St Petersburg 03/03/2018	Content-based restriction with reference to law banning promotion of homosexuality Decisions by the St Petersburg Administration of 22/02/2018 and 27/02/2018	Judicial review under the Code of Administrative Procedure 27/12/2018 Supreme Court of the Russian Federation (two-tier cassation procedure)	Art. 13 – lack of any effective remedy in domestic law in relation to Article 11 complaint

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Proposed theme of the public event Location Date	Grounds for refusal	Final domestic decision Court name Date	Other complaints under well-established case-law
		Vyacheslav Vladimirovich VERESHCHAGIN 1972 **Maksim Arkadyevich NADTOCHIY** 1985					
4.	32151/20 15/06/2020	**Yanina Vladislavovna RADETSKAYA** 1975	Olenichev Maksim Vladimirovich St Petersburg	Raising tolerance towards LGBT people in society Garden (dedicated to holding public events) St Petersburg 17/05/2018	Content-based restriction with reference to law banning promotion of homosexuality Decision by the Nevskiy District Administration of St Petersburg of 07/05/2018	Judicial review under the Code of Administrative Procedure 17/05/2019 Supreme Court of the Russian Federation (two-tier cassation procedure), decision received on 18/11/2019	Art. 13 – lack of any effective remedy in domestic law in relation to Article 11 complaint
5.	32191/20 15/06/2020	**Ruslan Aleksandrovich SAVOLAYNEN** 1989	Olenichev Maksim Vladimirovich St Petersburg	Raising tolerance towards LGBT people in society Park (dedicated to holding public events) St Petersburg 17/05/2018	Content-based restriction with reference to law banning promotion of homosexuality Decision by the Primorskiy District Administration of St Petersburg of 04/05/2018	Judicial review under the Code of Administrative Procedure 17/09/2019 Supreme Court of the Russian Federation (two-tier cassation procedure)	Art. 13 – lack of any effective remedy in domestic law in relation to Article 11 complaint